

25NNCV06947 25NNCV06947

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-12

Motion: DEMURRER TO COMPLAINT

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Case Number: 25NNCV06947 Hearing Date: August 12, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ARIANNA GRIFFIN,

Plaintiff(s),

vs.

SPECIALTY
RESTAURANTS CORPORATION,

Defendant(s).

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CASE NO.: 25NNCV06947

[TENTATIVE]

ORDER RE: DEMURRER TO COMPLAINT

Dept.

3

8:30

a.m.

August

12, 2026

I. INTRODUCTION

Plaintiff

Arianna Griffin ("Plaintiff") filed this action on October 1, 2025, against defendant Specialty Restaurants Corporation ("Defendant") arising from a slip and fall that occurred on or about September 29, 2023. Plaintiff asserts causes of action for negligence and premises liability.

On

March 19, 2026, Defendant filed a demurrer to the Complaint on the grounds that the action was time-barred because it was filed more than 2 years after the slip-and-fall incident. (Code Civ. Proc., § 335.1.)

On August 4,

2026, Plaintiff filed an opposition brief and an application for leave to file the late opposition.

Defendant
filed a reply brief on August 5, 2026.

II. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.)

III. DISCUSSION

As stated above, Defendant demurs to the Complaint on the grounds that it shows, on its face, that the action is time-barred. Plaintiff alleges that Defendant negligently maintained its property which allowed a slip hazard to exist and caused her to sustain injuries on September 29, 2023. (Comp., ¶¶ 5, 7-10.) The statute of limitations period for a personal injury action is 2 years, meaning that Plaintiff should have filed her Complaint by September 29, 2025, at the latest. (Code Civ. Proc., § 335.1.)

In a late-filed opposition brief, Plaintiff argues that the Complaint was electronically filed on September 29, 2025, but rejected. The notice of rejection, generated on October 1, 2025, at 1:56 p.m., stated: "Email for service on Complaint must match the data." (Aziz Decl., Ex. B.) When an electronically submitted complaint is rejected for noncompliance with filing requirements or nonpayment of a required fee, the limitations period is tolled from the date the court received the document through the later rejection-notice date, plus one additional day, if the complaint is resubmitted in a form that corrects the identified errors. (Code Civ. Proc., § 1010.6, subd. (e)(4)(E).) This statute is consistent with case law which provides that "a paper is deemed filed when it is deposited with the clerk with directions to file the paper." *¿* (*Rojas v. Cutsforth* (1998) 67

Cal.App.4th 774, 778 (Rojas).)¿When a filing has an insubstantial defect, “the clerk should file the complaint and notify the attorney

or party that the perceived defect should be corrected at the earliest opportunity.” (Id., at p. 777.) Examples of such defects include failing to submit a form required by local rules and listing the wrong courthouse or division. (Id., at p. 777-778.)

Here, Plaintiff submitted the complaint on September 29, 2025, and the clerk did not file the document because conflicting email addresses for service were provided. Plaintiff argues that the Complaint remains timely because counsel corrected the error and re-submitted the Complaint within 11 minutes at 2:07 p.m., tolling the statute of limitations from September 29, 2025, to October 2, 2025.

With regard to the untimeliness of the brief, Plaintiff’s counsel argues in an “application” for leave to file a late opposition that the failure to serve an opposition brief by the deadline of July 30, 2026, was due to a staffing issue. Plaintiff’s counsel declares that this matter was originally assigned to an unidentified attorney who is no longer employed by the firm. Plaintiff’s counsel also states that the “Director of Litigation”, whose responsibilities included overseeing litigation calendaring, resigned on June 4, 2026, and the deadline to oppose this demurrer was not reflected on the calendar. Plaintiff’s counsel did not realize that the deadline had passed until August 4, 2026, at which point he directed that the opposition be filed and served.

The Court has discretion to disregard untimely-filed papers and in this case, the Court chooses to exercise such discretion. (CRC 3.1300(d).) Plaintiff’s proffered reason for the calendaring issue is not credible because this demurrer was filed on March 19, 2026, long before the departure of the litigation director in June of 2026. The timeline provided by Plaintiff’s counsel also means that for two months, no review of the case file and calendar had been conducted, even though a case management conference was held on May 6, 2026, and a case management statement was prepared and filed on May 1, 2026.

Therefore, Defendant’s demurrer is SUSTAINED. Since Plaintiff’s Complaint cannot be successfully amended to overcome the statute of limitations, the demurrer is sustained without leave to amend.

Plaintiff may file a motion for relief

under Code of Civil Procedure section 473(b) for failing to timely oppose the demurrer and request a nunc pro tunc order correcting the filing date of the Complaint. In opposing such motion, Defendant may list its costs and expenses incurred in attempting to meet and confer for this demurrer, drafting the demurrer, reviewing the opposition brief, and drafting the reply brief.

IV. CONCLUSION

Defendant's demurrer is SUSTAINED
without leave to amend.

Moving party to give notice.

Dated
this 12th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.